

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1366

By: Culver

AS INTRODUCED

An Act relating to dentists and dental hygienists; providing purpose; defining terms; providing for Commission membership; providing duties for Compact Member States; providing powers and duties of the Compact Commission; providing the application, eligibility, and issuance of the Compact license privilege to a practice state; specifying jurisdiction of Compact license privilege holders; providing for fees and military waiver; providing for joint investigations and disciplinary actions; providing for request of information from nonmember states; directing rulemaking functions of the Compact Commission; providing for oversight of Compact; providing for enforcement; providing for dispute resolution; providing for withdrawal from the Compact; providing for dissolution of the Compact; providing for severability; providing for binding effect of the Compact; providing rules of order; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 329.1 of Title 59, unless there is created a duplication in numbering, reads as follows:

1 The American Association of Dental Boards Compact is hereby
2 enacted into law and the Governor shall enter into a Compact on
3 behalf of the State of Oklahoma with any jurisdiction legally joined
4 therein, in the form substantially as set forth in this act.

5 SECTION 2. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 329.2 of Title 59, unless there
7 is created a duplication in numbering, reads as follows:

8 The American Association of Dental Boards Compact:

9 1. Allows for expedited licensure portability and ease of
10 movement between states;

11 2. Allows each state to continue to regulate the practice of
12 dentistry and dental hygiene within its borders and maintain its
13 sovereignty by allowing actions against a Compact license privilege
14 or a licensee and maintaining its existing licensure structure while
15 allowing for Compact licensure privileges;

16 3. Creates a common goal of protecting the public by ensuring a
17 uniform licensure standard and sharing of information in the
18 Compact;

19 4. Allows for licensure in every participating state by passing
20 a uniform licensure examination, that tests psychomotor and
21 cognitive dental skills, which is currently accepted in fifty state
22 licensing jurisdictions and United States territories;

1 5. Gives licensees one location to maintain professional
2 documentation to expedite Compact license privileges in states,
3 hospitals, or institutional credentialing;

4 6. Facilitates a faster licensure process for relocation or
5 separation of military members and his or her dependent spouse.
6 There are no Compact fees for military members or his or her spouse;

7 7. Alleviates a duplicative process for licensure among
8 multiple states;

9 8. Saves applicants money by not having to obtain duplicate
10 documents from a source that charges for the documents; and

11 9. Utilizes existing infrastructure of the AADB that has been
12 in existence for over one hundred (100) years, representing dental
13 licensing boards.

14 SECTION 3. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 329.3 of Title 59, unless there
16 is created a duplication in numbering, reads as follows:

17 As used in this act:

18 1. "AADB" means the American Association of Dental Boards or
19 its named successor, formerly known as the American Association of
20 Dental Examiners (AADE), originally chartered on September 10, 1896,
21 and renewed in 1944, comprised of state dental boards in the United
22 States and its territories;

23 2. "AADB Attorneys' Committee" means attorneys that currently
24 represent a state dental board. The AADB Attorneys' Committee

1 participates in the Commission as a non-voting member. An attorney
2 who has previously served as an attorney for a state dental board
3 may be invited on a year-to-year basis to serve on the Committee if
4 he or she has not engaged in an official case against a board within
5 the Compact or has any other conflict of interest. The AADB
6 Attorneys' Committee may assist the investigators in working through
7 joint investigation issues between states. The AADB Attorneys'
8 Committee shall prepare a summary of legal issues directly dealing
9 with the Compact at the annual meeting as well as a legal update for
10 issues affecting Member State Dental Boards;

11 3. "AADB Compact Commission" means the American Association of
12 Dental Boards (AADB) dental and dental hygiene Compact Commission.
13 Each state shall have two members as required by Section 4 of this
14 Compact, meeting as a whole to form the Commission;

15 4. "AADB composite" means an annual publication listing
16 information regarding each state board, contacts, links to statutes
17 and rules and additional data. Each state shall submit an annual
18 update regarding all dental-practice-related licenses and permits
19 available by state and the procedures allowed to be conducted by
20 licensees and permit holders;

21 5. "Active-duty military person or spouse" means an individual
22 in full-time active-duty status in the active uniformed service of
23 the United States including members of the National Guard and
24 Reserve. The legal spouse of the military member must be recognized

1 by the military unit as a dependent while the service member is on
2 active duty. Spouses shall receive the same privileges as military
3 members for the purpose of this Compact;

4 6. "Active investigation" means an active investigation
5 resulting in formal allegations or charges precipitating a judicial
6 process by a Dental Board, oversight agency, or other law
7 enforcement entity;

8 7. "Adverse action" means an order issued by a state dental
9 board or reported to the AADB Clearinghouse pursuant to the Compact
10 bylaws and rules. This shall also include a temporary emergency
11 order that may be later withdrawn by a board;

12 8. "ADEX examination" means American Board of Dental Examiners
13 examination;

14 9. "Bylaws" means the bylaws passed by the AADB or its named
15 successor Compact Commission;

16 10. "Clearinghouse" means the AADB Clearinghouse and databank
17 that houses prior adverse actions, orders, and denials of licensure
18 or permits from state dental boards in the fifty states and
19 territories;

20 11. "CODA" means the Commission on Dental Accreditation or its
21 successor as approved by the United States Department of Education;

22 12. "Commissioners" means the two members chosen by each Member
23 State Dental Board to serve as the voting members of the Compact;
24

1 13. "Compact" means the American Association of Dental Boards
2 (AADB) Dental and Dental Hygiene Compact;

3 14. "Compact license privilege" means the expedited dental or
4 dental hygiene license to practice in a Member State that differs
5 from the licensee's home state;

6 15. "Conviction" means an adjudication and/or formal judgment
7 by a court that an individual is guilty through a plea of guilty or
8 no contest, or a finding of guilt by the court. Evidence of a
9 conviction of a criminal offense by the court shall be considered
10 final for the purposes of disciplinary action by a board member;

11 16. "Criminal background check" means a dentist or dental
12 hygienist seeking Compact license privileges shall complete and
13 provide a criminal background check, including the use of the
14 results of fingerprint or other biometric data checks compliant with
15 the requirements of the Federal Bureau of Investigation, with the
16 exception of federal employees who have suitability determination in
17 accordance with 5 C.F.R., Section 731.202;

18 17. "Dental hygienist" means any person who:

19 a. has successfully graduated from a CODA-approved dental
20 hygiene school,

21 b. has successfully passed the American Board of Dental
22 Examiners (ADEX) licensure exam, or has been in
23 practice five (5) years or more and has successfully
24 passed a regional or equivalent state-administered

1 psychomotor licensure examination prior to January 1,
2 2026,

3 c. has successfully passed the written national dental
4 hygiene board examination administered by the Joint
5 Commission on National Dental Examinations,

6 d. possesses a full and unrestricted dental hygiene
7 license issued by a Member State of the Compact,

8 e. has never been convicted, received adjudication,
9 deferred adjudication, community supervision, or
10 deferred disposition for any offense by a court of
11 appropriate jurisdiction,

12 f. has never been a subject of discipline by a board
13 through any adverse action, order, or other
14 restriction of the licensee by the board with the
15 exception of failure to pay fees or failure to
16 complete continuing education,

17 g. is not currently under active investigation by a
18 licensing agency or law enforcement authority in any
19 state, federal, or foreign jurisdiction, and

20 h. meet any jurisprudence requirement established by a
21 Member State Dental Board in which a licensee is
22 seeking a Compact privilege expedited license;

23 18. "Dental Practice Act" means the laws and regulations
24 governing the practice of dentistry within a Member State;

1 19. "Dentist" means any person who:

- 2 a. has successfully graduated from a CODA-approved dental
3 school,
- 4 b. has successfully passed the American Board of Dental
5 Examiners (ADEX) licensure exam, or has been in
6 practice five (5) years or more and has successfully
7 passed a regional or equivalent state-administered
8 psychomotor licensure examination prior to January 1,
9 2026,
- 10 c. has successfully passed the written National Dental
11 Board Exam administered by the Joint Commission on
12 National Dental Examinations,
- 13 d. possesses a full and unrestricted dental license
14 issued by a Member State Dental Board of the Compact,
- 15 e. has never been convicted, received adjudication,
16 deferred adjudication, community supervision, or
17 deferred disposition for any offense by a court of
18 appropriate jurisdiction,
- 19 f. has never been a subject of discipline by a board as
20 determined by the AADB Compact bylaws and rules,
21 through any adverse action, order, or other
22 restriction of the licensee by the board with the
23 exception of failure to pay fees or failure to
24 complete continuing education,

1 g. has never had a state or federal drug registration,
2 permit, or license restricted, suspended, or revoked
3 by the United States Drug Enforcement Administration
4 or any state board that oversees scheduled drug
5 registrations,

6 h. is not currently under active investigation by a
7 licensing agency or law enforcement authority in any
8 state, federal, or foreign jurisdiction, and

9 i. meet any jurisprudence requirement established by a
10 Member State Dental Board in which a licensee is
11 seeking a Compact privilege expedited license;

12 20. "Home state" means the state of primary licensure. It is
13 the location of the practicing dentist or dental hygienist license
14 where Compact privileges originate and the licensee practices at
15 least twenty-five percent (25%) of the time within a calendar year.
16 The home state can take an action on a licensee regardless of where
17 an action against a licensee occurred;

18 21. "License" means authorization for a dentist or dental
19 hygienist to engage in the unrestricted practice of dentistry or
20 dental hygiene, which would be unlawful without;

21 22. "Member State Dental Board" means a state agency in a
22 Member State that acts in the sovereign interests of the state by
23 protecting the public through licensure, regulation, and the
24 education of dentist and dental hygienists as directed by the state

1 law. All actions taken by a member board shall be under the
2 authority of its state jurisdiction and any other rights conferred
3 under this Compact;

4 23. "Member State" means a state or United States territory
5 that has enacted the Compact;

6 24. "Regional board examination" means the Western Regional
7 Dental Board Examination (WREB), the North East Regional Board of
8 Dental Examiners (NERB), the Commission on Dental Competency
9 Assessments (CDCA), Council of AADB Compact Testing Agencies (CITA),
10 Southern Regional Testing Agency (SRTA), or Central Regional Dental
11 Testing Services (CRDTS);

12 25. "Repository" means the AADB repository of original
13 documents of a licensee that may include original transcripts,
14 certification documents, test scores, military training records,
15 previous or current licensing documents, and other sources of
16 materials needed for applications and verification. The AADB
17 repository shall receive documents from primary or originating
18 sources and verify their authenticity;

19 26. "Scope of practice" means the dental-related procedures
20 that require a license, permit, or training to undertake the
21 treatment and procedure to be completed on a patient within the
22 practice state's requirements;

23 27. "State" means a state within the United States or a United
24 States Territory; and

1 28. "State jurisprudence" means the knowledge of the state laws
2 and rules of dentistry and dental hygiene in which a Compact license
3 privilege is extended.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 329.4 of Title 59, unless there
6 is created a duplication in numbering, reads as follows:

7 A. The Member States hereby create the AADB Dental and Dental
8 Hygiene Compact. Each state must enact the AADB model Compact that
9 is not materially different as determined by the AADB Compact
10 Commission.

11 B. Each Member State Dental Board shall have two voting
12 Commission members that shall serve as Commissioners and have one
13 vote each, cumulatively making the AADB Compact Commission. Member
14 States with separate Dental and Dental Hygiene State Dental Boards
15 shall appoint one commissioner from each Board. One shall be a
16 current state dental board member. Commissioners may not delegate
17 votes or proxies; however, if a commissioner is unable to attend,
18 the Member State may substitute a delegate that meets the same
19 requirements.

20 C. Upon five states joining the Compact, the AADB dental and
21 dental hygiene Compact will become active. The Compact Commission
22 shall have the authority to enact bylaws and rules on behalf of the
23 Compact that shall have the force of law in each participating state
24 to carry out the provisions of the Compact.

1 D. The AADB Compact Commission shall be a separate body within
2 the American Association of Dental Boards and shall have all the
3 responsibilities, powers, and duties set forth in the Compact and
4 such additional powers as may be conferred by a concurrent action of
5 the respective legislatures of the Member States in accordance with
6 the terms of the Compact.

7 E. The Compact Commission shall meet at least once per calendar
8 year and additional times as necessary pursuant to the bylaws and
9 rules. During the annual meeting, the Commission members and the
10 AADB Attorneys' Committee shall prepare information regarding issues
11 and resolutions between states to further the cooperation of the
12 state boards. The AADB Attorneys' Committee shall also prepare a
13 legal update for current events related to dental boards.

14 F. The Compact Commission shall elect officers from the
15 membership that shall serve as an Executive Committee. Elections
16 shall occur during the annual meeting. The quorum of Commissioners
17 shall select an Executive Committee consisting of a Chair, Vice-
18 Chair, Secretary, Treasurer, and a Representative from the North,
19 South, East, and West districts as divided pursuant to the AADB
20 Compact Rules.

21 G. Quorum for purposes of conducting business shall be a
22 majority of Commission members attending in person or virtually.

23 H. The Commission shall provide notice of all meetings on its
24 website and in other communications to members.

1 I. A vote of two-thirds (2/3) of the membership shall be
2 required for an executive session to discuss:

3 1. Items specifically related to participation in a lawsuit or
4 in anticipation of a legal proceeding;

5 2. Matters specifically exempted from disclosure by federal
6 statute;

7 3. Discussions of investigative records of an active Compact
8 member investigation or investigative records for law enforcement or
9 discussions specifically accusing a person of a crime or a public
10 censure;

11 4. Discussions that would include information of a personal
12 nature that would constitute an unwarranted invasion of personal
13 privacy;

14 5. Anything considered internal practices and procedures or a
15 trade secret;

16 6. Other items in the Commission bylaws allowing for executive
17 sessions to be called; or

18 7. Advice of legal counsel.

19 J. The Commission shall keep minutes and make them available to
20 all Member States.

21 K. The Commission may establish other committees as needed.

22 L. The Commission shall prepare an annual report that shall be
23 made available to the legislatures and governors of the Member
24 States concerning the activities of the AADB Compact Commission

1 during the preceding calendar year. Such reports shall also include
2 reports of financial audits and any recommendations that may have
3 been adopted by the Compact Commission.

4 SECTION 5. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 329.5 of Title 59, unless there
6 is created a duplication in numbering, reads as follows:

7 A. Member States agree to submit Member State Dental Board
8 actions and other documents and data as determined by the AADB
9 Compact Commission through bylaws and rules.

10 B. Member States shall notify the AADB Compact Commission
11 pursuant to the rules regarding any adverse action taken by the
12 Board, any active investigation by the state dental board, and any
13 active investigation involving pending criminal charges or other
14 circumstance as determined by the Compact Commission Rules and
15 bylaws.

16 C. Any adverse action, order, restriction, or denial of a
17 license or permit on a licensee or permit holder shall be reported
18 to the AADB Clearinghouse by the Member State Dental Board.

19 D. Member State Dental Boards may submit nonpublic complaints,
20 disciplinary or investigatory information not required by subsection
21 C of this section to the AADB Clearinghouse. All investigatory
22 material shall be considered confidential and not part of a public
23 record unless otherwise specifically required by state statute.

1 E. Accept continuing education credits as required by each
2 state, including but not limited to classes authorized by AADB
3 Accredited Continuing Education (ACE) program.

4 F. Documents in the AADB Repository shall be treated by a
5 Member State as the equivalent of a primary or original source
6 document for licensure.

7 G. Member States agree to accept a standardized application for
8 Compact license privileges. The standardized application shall be
9 established by the rules enacted by the Commission.

10 H. Member States may agree to share information regarding
11 ongoing investigations and actions, including joint investigations
12 between states. All investigatory material shall be considered
13 confidential and not part of a public record unless otherwise
14 specifically required by state statute.

15 I. As part of the Compact enforcement, participating Member
16 States issuing subpoenas and seeking testimony of witnesses shall be
17 enforced in other participating Member States in the Compact and
18 shall be enforced by a court of competent jurisdiction where the
19 witnesses or evidence is located.

20 SECTION 6. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 329.6 of Title 59, unless there
22 is created a duplication in numbering, reads as follows:

23 A. The AADB Compact Commission shall have the duty and power
24 to:

- 1 1. Oversee and maintain the administration of the Compact,
2 including organizational needs, the financial activities, the hiring
3 of personnel and ongoing activities or needs of the AADB Compact
4 Commission;
- 5 2. Promulgate bylaws and rules to operate the Compact;
- 6 3. Establish a budget and make expenditures;
- 7 4. Issue, upon the request of a Member State Dental Board,
8 advisory opinions concerning the meaning or interpretation of the
9 Compact and its bylaws, rules, and actions;
- 10 5. Enforce compliance with Compact provisions, the rules
11 promulgated by the AADB Compact Commission and the bylaws using all
12 necessary and proper means, including, but not limited to, the use
13 of judicial process;
- 14 6. Hold an annual meeting for the AADB Compact Commission where
15 the elections of an executive board and other issues may be
16 discussed and voted on;
- 17 7. Establish personnel policies and programs relating to
18 conflicts of interest, rates of compensation, and qualifications of
19 personnel;
- 20 8. Accept donations and grants of money, equipment, supplies,
21 materials, and services, and to receive, utilize, and dispose of
22 them in a manner consistent with the conflict-of-interest policies
23 established by the AADB Commission;

1 9. Report annually to the legislatures and governors of the
2 Member State Dental Boards concerning the activities of the AADB
3 Compact Commission during the preceding calendar year. Such reports
4 shall also include reports of financial audits and any
5 recommendations that may have been adopted by the AADB Compact
6 Commission; and

7 10. Coordinate education, training, and public awareness
8 regarding the Compact, its implementation, and its operation.

9 B. The Executive Committee shall have the power to act on
10 behalf of the AADB Compact Commission with the exception of
11 rulemaking during periods when the Compact Commission is not in
12 session. When acting on behalf of the Compact Commission, the
13 Executive Committee shall oversee the administration of the Compact,
14 including enforcement and compliance of the Compact.

15 C. The officers and employees of the AADB Compact Commission
16 shall be immune from suit and liability, either personally or in his
17 or her official capacity, for a claim for damage to or loss of
18 property or personal injury or other civil liability caused or
19 arising out of, or relating to, an actual or alleged act, error, or
20 omission that occurred, or that such person had a reasonable basis
21 for believing occurred, within the scope of AADB Compact Commission
22 employment, duties or responsibilities; provided, that such person
23 shall not be protected from suit or liability for damage, loss,
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1 injury, or liability caused by the intentional or willful and wanton
2 misconduct of such person.

3 D. The liability of the Executive Director and employees of the
4 AADB Compact Commission or representatives of the AADB Compact
5 Commission, acting within the scope of such person's employment or
6 duties for acts, errors, or omissions occurring within such person's
7 state, may not exceed the limits of liability set forth under the
8 constitution and laws of that state for state officials, employees,
9 and agents. The AADB Compact Commission is considered to be an
10 instrumentality of the states for the purposes of any such action.
11 Nothing in this subsection shall be construed to protect such person
12 from suit or liability for damage, loss, injury, or liability caused
13 by the intentional or willful and wanton misconduct of such person.

14 E. The AADB Compact Commission shall defend the Executive
15 Director, its employees, and, subject to the approval of the
16 Attorney General or other appropriate legal counsel of the Member
17 State represented by an AADB Compact Commission representative,
18 shall defend such AADB Compact Commission representative in any
19 civil action seeking to impose liability arising out of an actual or
20 alleged act, error, or omission that occurred within the scope of
21 AADB Compact Commission employment, duties, or responsibilities, or
22 that the defendant had a reasonable basis for believing occurred
23 within the scope of AADB Compact Commission employment, duties, or
24 responsibilities, provided that the actual or alleged act, error, or

1 omission did not result from intentional or willful and wanton
2 misconduct on the part of such person.

3 F. To the extent not covered by the state involved, Member
4 State, or the AADB Compact Commission, the representatives or
5 employees of the AADB Compact Commission shall be held harmless in
6 the amount of a settlement or judgment, including attorney fees and
7 costs, obtained against such persons arising out of an actual or
8 alleged act, error, or omission that occurred within the scope of
9 AADB Compact Commission employment, duties, or responsibilities, or
10 that such persons had a reasonable basis for believing occurred
11 within the scope of AADB Compact Commission employment, duties, or
12 responsibilities, provided that the actual or alleged act, error, or
13 omission did not result from intentional or willful and wanton
14 misconduct on the part of such persons.

15 SECTION 7. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 329.7 of Title 59, unless there
17 is created a duplication in numbering, reads as follows:

18 A. A dentist or dental hygienist applying for Compact license
19 privileges shall meet the requirements of a dentist as listed in
20 paragraph 19 of Section 3 of this Compact or dental hygienist as
21 listed in paragraph 17 of Section 3 of this Compact and hold a
22 current valid license in a Member State under this Compact.

23 B. Each dentist or dental hygienist shall designate a home
24 state of licensure. The home state shall be determined by:

1 1. The state of primary residence for the dentist or dental
2 hygienist where twenty-five percent (25%) of his or her practice
3 within one (1) year occurs. An active-duty military member or his
4 or her spouse may choose a home state as designated with the
5 military but is not required to meet the twenty-five percent (25%)
6 practice within the home state requirement; or

7 2. If no state qualifies under paragraph 1 of this subsection,
8 then the state where the dentist or dental hygienist filed the
9 previous year federal tax return.

10 C. A dentist or dental hygienist may redesignate a home state
11 one time in a calendar year, if the qualifications of a home state
12 are met.

13 D. A dentist or dental hygienist seeking a Compact license
14 privilege shall apply to his or her home state for a letter stating
15 that he or she is eligible for Compact license privileges.

16 E. The home state determines the eligibility and issues a
17 letter of approval or denial for the Compact license privilege.

18 F. The letter is submitted to the proposed Compact license
19 state along with the AADB Compact application packet and
20 authorization to seek access to the licensee's repository documents
21 and any additional information as may be required by the proposed
22 Compact license state along with the required fees. Upon approval
23 from the home state, the Compact license state shall issue a state
24

1 Compact license privilege from the proposed application state to the
2 applicant.

3 G. Appeals on determination of eligibility shall be made to the
4 home state where the applicant was seeking privileges under a state
5 Compact license privilege and shall be subject to the law of that
6 state.

7 H. A person holding a Compact license privilege shall notify
8 the Compact Commission within ten (10) business days of any adverse
9 action taken against a license held in a non-Compact state.

10 I. A Compact license privilege may be revoked, suspended, or
11 limited by the issuing state dental board if at any time the
12 licensee's home state license is revoked, suspended, or limited.

13 J. The AADB Compact Commission is authorized to develop rules
14 regarding the application and renewal process including payment of
15 any application fees and the issuance of a Compact license
16 privilege.

17 K. Eligibility or ineligibility to receive a state Compact
18 license privilege shall not impact or prohibit an individual from
19 the ability to seek a state license through the regular process
20 outside of the Compact.

21 SECTION 8. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 329.8 of Title 59, unless there
23 is created a duplication in numbering, reads as follows:

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1 A. Each dentist or dental hygienist holding a Compact license
2 privilege is required to reference the composite and Member State
3 Dental Boards' statutes and rules to be aware of laws that apply to
4 a specific state in which he or she is practicing under a Compact
5 license privilege. Compact license scope and practice requirements
6 shall conform to the state jurisdiction in which the Compact license
7 privilege holder is practicing.

8 B. Each dentist or dental hygienist holding a Compact license
9 privilege shall list a current address with the AADB Compact
10 Commission that shall serve as his or her official address of
11 service.

12 C. A dentist or dental hygienist holding a Compact license
13 privilege may have an adverse action taken against him or her by
14 the:

15 1. Member State Dental Board in which they are practicing with
16 a Compact license privilege;

17 2. Compact licensee's home state; or

18 3. Member State that is a Compact member where the Compact
19 licensee has requested or received a Compact license privilege to
20 practice.

21 D. Any state in which the Compact licensee holds a Compact
22 license privilege may investigate an allegation of a violation of
23 the statutes and rules of dentistry or dental hygiene in any other
24 state where the Compact licensee holds a Compact license privilege.

1 SECTION 9. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 329.9 of Title 59, unless there
3 is created a duplication in numbering, reads as follows:

4 A. The AADB Compact Commission is authorized to develop rules
5 regarding fees for Compact licensees' use of the repository and
6 other provisions as determined by the AADB Compact Commission.

7 B. A Member State Dental Board issuing a Compact license
8 privilege authorizing practice in its state may impose a fee for a
9 Compact license privilege to be issued or renewed.

10 C. No Compact fee shall be required of any active-duty military
11 member or his or her spouse up to one (1) year after separation.
12 Each participating state issuing a Compact license privilege may
13 waive fees for active-duty military and his or her spouse as
14 required by each individual state statute.

15 D. Active-duty military may transfer military training records
16 to the repository without a fee.

17 SECTION 10. NEW LAW A new section of law to be codified

18 in the Oklahoma Statutes as Section 329.10 of Title 59, unless there
19 is created a duplication in numbering, reads as follows:

20 A. Each state shall name a point of contact for joint
21 investigations between Compact Member State Dental Boards.

22 B. In addition to the authority granted to a Member State
23 Dental Board by the state law of its jurisdiction, Member State
24 Dental Boards may participate with other Member State Dental Boards

1 in joint investigations of licensees that fall subject to this
2 Compact.

3 C. Member State Dental Boards may share investigative,
4 litigation, or other materials in furtherance of any joint or
5 individual investigation arising with a licensee who holds a Compact
6 license privilege within his or her jurisdiction.

7 D. A subpoena issued by a Member State or Member State Dental
8 Board shall be enforceable in other Member States as allowed by law.

9 E. If a licensee has a disciplinary action taken by any Member
10 State Dental Board against a licensee under the Compact, he or she
11 shall automatically be subject to discipline by other Member State
12 Dental Boards.

13 F. If a licensee has an action taken against his or her home
14 state license, including being revoked, surrendered, or relinquished
15 in lieu of discipline or being suspended, then automatically all
16 other Compact license privileges shall be placed in the same status.
17 The home state shall notify the Commission and the Commission shall
18 issue a notice to all Member State Dental Boards that the licensee
19 holding a Compact license privilege shall suspend the Compact
20 license privilege.

21 G. If discipline is taken against a licensee in an AADB Compact
22 Member State, the Member State Board shall notify the Commission and
23 the home state of the licensee. The home state may deem the action
24 conclusive as a matter of law and fact decided and:

1 1. Impose the same or lesser sanction consistent with the home
2 state practice act; or

3 2. Pursue separate actions against the licensee under its
4 practice act regardless of the sanctions pursued by the Compact
5 Member State Dental Board.

6 SECTION 11. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 329.11 of Title 59, unless there
8 is created a duplication in numbering, reads as follows:

9 A. Insurance companies and entities verifying documents for the
10 purpose of licenses extended to a provider may seek information from
11 the AADB Clearinghouse for public record documents.

12 B. A dentist or dental hygienist, as defined by the bylaws and
13 rules, may submit a request to the AADB Compact Commission to allow
14 any hiring employer, entity, or insurance company to access
15 documents from the repository for the purposes of credentialing,
16 licensing, or other privileges.

17 C. The Commission shall set a fee schedule for these services
18 in the bylaws and rules.

19 SECTION 12. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 329.12 of Title 59, unless there
21 is created a duplication in numbering, reads as follows:

22 A. The AADB Compact Commission shall promulgate reasonable
23 rules in order to effectively and efficiently achieve the purposes
24 of the Compact. Notwithstanding the foregoing, in the event the

1 Commission exercises its rulemaking authority in a manner that is
2 beyond the scope of the purposes of the Compact, or the powers
3 granted hereunder, then such an action by the AADB Compact
4 Commission may be determined to be invalid and have no force or
5 effect.

6 B. Rules deemed appropriate for the operations of the AADB
7 Compact Commission shall be made pursuant to a rulemaking process
8 that substantially conforms to the Model State Administrative
9 Procedure Act of 2010, and subsequent amendments thereto.

10 SECTION 13. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 329.13 of Title 59, unless there
12 is created a duplication in numbering, reads as follows:

13 A. The executive, legislative, and judicial branches of state
14 government in each Member State Dental Board shall enforce the
15 Compact and shall take all actions necessary and appropriate to
16 effectuate the Compact's purposes and intent to allow for expedited
17 licensure for the purpose of mobility. The provisions of the
18 Compact and the rules promulgated hereunder shall have standing as
19 statutory law, but shall not override existing state authority to
20 regulate the practice of dentistry and dental hygiene.

21 B. All courts may take judicial notice of the Compact and the
22 rules in any judicial or administrative proceeding in a Member State
23 pertaining to the subject matter of the Compact which may affect the
24 powers, responsibilities, or actions of the AADB Compact Commission.

1 C. The AADB Compact Commission shall be entitled to receive all
2 service of process in any such proceeding and shall have standing to
3 intervene in the proceeding for all purposes. Failure to provide
4 service of process to the AADB Compact Commission shall render a
5 judgment or order void as to the AADB Compact Commission, the
6 Compact, or promulgated rules.

7 SECTION 14. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 329.14 of Title 59, unless there
9 is created a duplication in numbering, reads as follows:

10 A. The AADB Compact Commission, in the reasonable exercise of
11 its discretion, shall enforce the provisions and rules of the
12 Compact.

13 B. The grounds for default include, but are not limited to,
14 failure of a Member State to perform such obligations or
15 responsibilities imposed upon it by the Compact, or the rules and
16 bylaws of the AADB Compact Commission promulgated under the Compact.

17 C. If the AADB Compact Commission determines that a Member
18 State has defaulted in the performance of its obligations or
19 responsibilities under the Compact, or the bylaws or promulgated
20 rules, the AADB Compact Commission shall:

21 1. Provide written notice to the defaulting state and other
22 Member States of the nature of the default, the means of curing the
23 default, and any action taken by the AADB Compact Commission. The
24

1 AADB Compact Commission shall specify the conditions by which the
2 defaulting state must cure its default; and

3 2. Provide remedial training and specific technical assistance
4 regarding the default.

5 D. If the defaulting state fails to cure the default, the
6 defaulting state shall be terminated from the Compact upon an
7 affirmative vote of a majority of the Commissioners and all rights,
8 privileges, and benefits conferred by the Compact shall terminate on
9 the effective date of termination. A cure of the default does not
10 relieve the offending state of obligations or liabilities incurred
11 during the period of the default.

12 E. Termination of membership in the Compact shall be imposed
13 only after all other means of securing compliance have been
14 exhausted. Notice of intent to terminate shall be given by the AADB
15 Compact Commission to the Governor, the majority and minority
16 leaders of the defaulting state's Legislature and each of the Member
17 States.

18 F. The AADB Compact Commission shall establish rules and
19 procedures to address licenses and Compact license privilege holders
20 that are materially impacted by the termination of a Member State or
21 the withdrawal of a Member State.

22 G. The AADB Compact Commission shall not bear any costs
23 relating to any state that has been found to be in default or which
24 has been terminated from the Compact, unless otherwise mutually

1 agreed upon in writing between the AADB Compact Commission and the
2 defaulting state.

3 H. The defaulting state may appeal the action of the AADB
4 Compact Commission by petitioning the federal district where the
5 AADB Compact Commission has its principal offices. The prevailing
6 party shall be awarded all costs of such litigation, including
7 reasonable attorney fees.

8 I. The AADB Compact Commission shall not bear any costs
9 relating to any state that has been found to be in default or which
10 has been terminated from the Compact, unless otherwise mutually
11 agreed upon in writing between the AADB Compact Commission and the
12 defaulting state.

13 J. The remedies herein shall not be the exclusive remedies of
14 the AADB Compact Commission. The AADB Compact Commission may avail
15 itself of any other remedies available under state law or the
16 regulation of a profession.

17 SECTION 15. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 329.15 of Title 59, unless there
19 is created a duplication in numbering, reads as follows:

20 A. The AADB Compact Commission shall attempt, upon the request
21 of a Member State Dental Board, to resolve disputes which are
22 subject to the Compact and which may arise among Member State Dental
23 Boards.

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1 B. The AADB Compact Commission shall promulgate rules providing
2 for both mediation and binding dispute resolution, as appropriate.

3 SECTION 16. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 329.16 of Title 59, unless there
5 is created a duplication in numbering, reads as follows:

6 A. Any state is eligible to become a Member State of the
7 Compact.

8 B. The Compact shall become effective and binding upon
9 legislative enactment of the Compact into law by no less than five
10 states. Thereafter, it shall become effective and binding on a
11 state upon enactment of the Compact into law by that state.

12 C. The governors of nonmember states, or his or her designees,
13 shall be invited to participate in the activities of the AADB
14 Compact Commission on a nonvoting basis prior to adoption of the
15 Compact by all states.

16 D. The AADB Compact Commission may propose amendments to the
17 Compact for enactment by the Member States. No amendment shall
18 become effective and binding upon the AADB Compact Commission and
19 the Member States unless and until it is enacted into law by
20 unanimous consent of the Member States.

21 SECTION 17. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 329.17 of Title 59, unless there
23 is created a duplication in numbering, reads as follows:

1 A. Once effective, the Compact shall continue in force and
2 remain binding upon each and every Member State; provided, that a
3 Member State may withdraw from the Compact after giving appropriate
4 notice by specifically repealing the statute which enacted the
5 Compact into law.

6 B. Withdrawal from the Compact shall be by the enactment of a
7 statute repealing the same. The individual's Compact license
8 privilege shall remain in effect for six (6) months from the date of
9 the Member State Dental Board's withdrawal.

10 C. The withdrawing state shall immediately notify the
11 chairperson of the AADB Compact Commission in writing upon the
12 introduction of legislation repealing the Compact in the withdrawing
13 state.

14 D. The AADB Compact Commission shall notify the other Member
15 States of the withdrawing state's intent to withdraw within sixty
16 (60) days of its receipt of notice provided under subsection C of
17 this section.

18 E. Reinstatement following withdrawal of a Member State shall
19 occur upon the withdrawing state reenacting the Compact or upon such
20 later date as determined by the AADB Compact Commission.

21 F. The AADB Compact Commission is authorized to develop rules
22 to address the impact of the withdrawal of a Member State on
23 licenses granted in other Member States to dentists and dental
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1 hygienists who designated the withdrawing Member State as the state
2 of principal license.

3 SECTION 18. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 329.18 of Title 59, unless there
5 is created a duplication in numbering, reads as follows:

6 A. The Compact shall dissolve effective upon the date of the
7 withdrawal or default of the Member State which reduces the
8 membership in the Compact to one Member State.

9 B. Upon the dissolution of the Compact, the Compact becomes
10 null and void and shall be of no further force or effect, and the
11 business and affairs of the AADB Compact Commission shall be
12 concluded and surplus funds shall be distributed in accordance with
13 the bylaws.

14 SECTION 19. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 329.19 of Title 59, unless there
16 is created a duplication in numbering, reads as follows:

17 A. The provisions of the Compact shall be severable, and if any
18 phrase, clause, sentence, or provision is deemed unenforceable, the
19 remaining provisions of the Compact shall be enforceable.

20 B. The provisions of the Compact shall be liberally construed
21 to effectuate its purposes.

22 SECTION 20. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 329.20 of Title 59, unless there
24 is created a duplication in numbering, reads as follows:

1 A. Nothing herein prevents the enforcement of any other law of
2 a Member State that is not inconsistent with the Compact.

3 B. All lawful actions of the AADB Compact Commission, including
4 all rules and bylaws promulgated by the Commission, are binding upon
5 the Member States.

6 C. All agreements between the AADB Compact Commission and the
7 Member States are binding in accordance with their terms.

8 D. In the event any provision of the Compact exceeds the
9 constitutional limits imposed on the Legislature of any Member
10 State, such provision shall be ineffective to the extent of the
11 conflict with the constitutional provision in question in that
12 Member State.

13 SECTION 21. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 329.21 of Title 59, unless there
15 is created a duplication in numbering, reads as follows:

16 The most current edition of the American Institute of
17 Parliamentarians Standard Code of Parliamentary Procedure governs
18 all meetings of the AADB Compact Commission, including its
19 committees, in those situations not otherwise covered in the bylaws.

20 SECTION 22. This act shall become effective November 1, 2025.
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